

Amendment No. 1 to HB1141

Terry
Signature of Sponsor

AMEND Senate Bill No. 882*

House Bill No. 1141

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 68-11-203(b)(1)(F)(iii), is amended
by deleting the subdivision and substituting:

(iii) One (1) representative of the assisted-care living facility industry who may be
appointed from lists of qualified persons submitted by interested groups, including the
Tennessee Center for Assisted Living, LeadingAge Tennessee, and Argentum; and

SECTION 2. Tennessee Code Annotated, Section 68-11-210, is amended by adding
the following as a new subsection:

(g)

(1) No later than January 1, 2027, the commission shall ensure the date
of the most recent inspection for each nursing home licensed under this part is
no more than fifteen (15) months prior to December 31, 2026.

(2) No later than June 1, 2025, the commission shall submit a report to
the chief clerk of each house of the general assembly on how the commission
will comply with the timeliness of the inspections as required by subdivision
(g)(1).

SECTION 3. Tennessee Code Annotated, Title 68, Chapter 11, Part 2, is amended by
adding the following as a new section:

(a) The commission shall negotiate with the federal centers for medicare and
medicaid services to secure the procedural flexibility the commission deems necessary

to effectively and efficiently regulate the commission, including securing a block grant waiver amendment pursuant to 42 U.S.C. § 1395aa.

(b) On or before January 31, 2026, the commission shall submit a report on the progress of the negotiations described in subsection (a) to the speaker of the senate, the speaker of the house of representatives, the chair of the senate health and welfare committee, and the chair of the committee in the house of representatives with subject matter jurisdiction over health-related matters.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.